

Court No. - 21

Case :- WRIT - C No. - 7188 of 2023

Petitioner :- Suaib Khan

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Shiv Om Vikram Singh Chauhan

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Prashant Kumar,J.

The petitioner has prayed for quashing of the recovery certificate dated 17.1.2023 issued against him for recovery of electricity dues in a case of theft of electricity.

Sri Baleshwar Chaturvedi, learned counsel appearing on behalf of the respondent-Electricity department states that the impugned recovery has been withdrawn and that a fresh order will be passed after affording opportunity of hearing to the petitioner.

Accordingly, the instant petition is disposed of with liberty to the respondent to pass fresh order strictly in accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2005.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 1.3.2023

skv